

**IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT IN AND FOR MANATEE
COUNTY, FLORIDA**

**COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff**

v.

Case Number 25 CC 715

**GEORGE EDWARD YESKE, III and ANY
UNKNOWN PARTY IN POSSESSION,
Defendants**

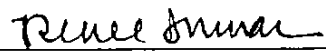
**ORDER ON DEFENDANT'S MOTION TO DETERMINE RENT AND DEMAND FOR JURY
TRIAL**

This matter came before the Court for hearing on April 8, 2025, on the Defendant's Motion to Determine Rent (filed March 3, 2025) and demand for jury trial (filed March 7, 2025). Present at the zoom hearing was both parties. Having heard the parties' presentations, reviewed the court file, and being otherwise duly advised in the premises, the Court finds and rules as follows.

1. This is an action related to property located at 900 9th Ave. East, Lot #38, Palmetto, FL 34221. The Plaintiff is the mobile home park owner, and the Defendant is the mobile home owner leasing Lot 38.
2. The Plaintiff filed its Complaint on February 21, 2025, asserting two counts – possession due to failure to pay lot rent (Count I), and damages for rent arrears (Count II). This action is one governed by Chapter 723, Florida Statutes. *See* § 723.061(1)(a), Fla. Stat.
3. The Defendant asks this Court to determine how much money must be deposited into the registry. *See* § 723.063(2), Fla. Stat. (“[i]n any action by the park owner . . . [based upon nonpayment of rent], the mobile home owner shall pay into the registry of the court that portion of the accrued rent . . . as determined by the court”). He argues that his mobile home was destroyed by Hurricane Milton, and as a result he is no longer obligated to pay lot rent. He relies on section 83.63, Florida Statutes (permitting residential tenants subject to Chapter 83 to terminate a rental agreement and vacate premises damaged by a casualty).
4. There was some evidence suggesting that the parties have discussed the possibility of the Defendant signing title to the mobile home over to the Plaintiff. That outcome has not been affirmatively agreed, however.
5. As a threshold matter, the Court does not find that Chapter 83 applies to this case, as the subject property is a mobile home owned by the Defendant. *See* § 723.004, Fla. Stat.
6. The parties agree that the Defendant leased Lot 38 of the park from the Plaintiff. “Mobile home lot” means a “lot intended for the placement of a mobile home,” § 723.003(9), Fla. Stat., and the parties agreed that the Defendant could place his mobile home on one of the Plaintiff's lots – specifically Lot 38. The Defendant is thus renting the land upon which his mobile home sits.
7. The undisputed evidence is that lot rent is \$821 per month, the Defendant is the owner of record, and no lot rent has been paid for January to April 2025.

8. Based on the evidence presented at this preliminary hearing, the Court finds that the Defendant shall deposit into the court registry the amount of \$3,284 (lot rent for January through April 2025). The Defendant shall do so no later than April 16, 2025. Additionally, the Defendant shall continue paying lot rent into the court registry as it becomes due until this matter is fully resolved. Pursuant to section 723.063(2), Florida Statutes, failure to deposit in accordance with this Order shall constitute an absolute waiver of the Defendant's defenses other than payment, and the Plaintiff will be entitled to an immediate default.
9. The Court reserves jurisdiction to address how monies deposited into the registry will be disbursed.
10. There is no objection by the Plaintiff to the Defendant's demand for a jury trial. Once the Defendant deposits the monies into the registry as provided in this Order, the parties shall contact the judicial assistant to schedule the 1.5-day jury trial, and pretrial conference.

DONE AND ORDERED in Chambers, Bradenton, Manatee County, Florida on this 9th day of April 2025.



Renee Inman, County Judge

Copies to:

Bill Price, Esq. (pleadings@wcpricelaw.com) AND (monicam@wcpricelaw.com)

George Yeske, (George.yeske@gmail.com) AND 1438 O'Neal Road, Gulfport, MS 39503